

Contentious Chamber

Decision on the merits 63/2024 of April 25, 2024

File number: DOS-2022-01907

Subject: Exercise of the right of access

The Contentious Chamber of the Data Protection Authority, composed of Mr. Hielke HIJMANS, president, and Messrs. Dirk Van Der Kelen and Jelle Stassijns, members;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation, hereinafter "GDPR");

Considering the law of December 3, 2017, establishing the Data Protection Authority, hereinafter "LCA";

Considering the internal regulations as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents in the file;

Has made the following decision regarding:

The complainant:

Ms. X, hereinafter "the complainant";

The defendant:

Y, hereinafter "the defendant"

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I. Facts and procedure

1.

On February 4, 2023, the complainant filed a complaint with the Data Protection Authority against the defendant.

2.

The subject of the complaint concerns the exercise of the right of access by the complainant, in which she addressed her request to the defendant, namely the manager of the software platform for an online scheduling system. The defendant did not respond to the complainant's request. In the subsequent mediation that took place at the First Line Service, the defendant reacted and clarified that it acted as a processor and that it only processed personal data on behalf of the clients using its software platform. In this context, the defendant provided the complainant with a list of clients who have a database in which she is included, so that she can address her access request to the defendant's clients as she wishes. According to the complainant, this response from the defendant is insufficient as she asserts that the defendant is responsible for the personal data processed via the platform and therefore would have acted in violation of Article 4.7) of the GDPR, Articles 12.3 and 12.4 of the GDPR in conjunction with Article 15.1 of the GDPR.

3.

On February 16, 2023, the complaint was declared admissible by the First Line Service based on Articles 58 and 60 of the LCA and the complaint was forwarded to the Contentious Chamber under Article 62, § 1 of the LCA.

4.

On July 31, 2023, the Contentious Chamber decided, based on Article 95, § 1, 1° and Article 98 of the LCA, that the file could be examined on the merits and informed the concerned parties by registered mail of the provisions as stated in Article 95, § 2 and Article 98 of the LCA. They were also informed, under Article 99 of the LCA, of the deadlines for submitting their conclusions.

The deadline for receiving the defendant's response conclusions was set for September 22, 2023, that for the complainant's reply conclusions for October 13, 2023, and that for the defendant's reply conclusions for November 3, 2023.

5.

On July 31, 2023, the defendant requested a copy of the file (art. 95, § 2, 3° of the LCA), which was

transmitted to him on August 8, 2023.

6.

On September 22, 2023, the Contentious Chamber received the defendant's response conclusions, which essentially state that it processes data on behalf of the data controllers who have responded to its SaaS offer and have retained it to act as a processor. The defendant explains that its role as a processor

1 Software as a Service.

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implies that there is no obligation on him to comply with Article 12.3 and Article 12.4 of the GDPR as well as Article 15.1 of the GDPR. In the alternative, the defendant argues that the complainant was asked to provide additional information for a proper verification of her personal data in order to provide an appropriate response to the data controller, namely a healthcare provider, in accordance with the obligations agreed upon in the subcontracting agreement, but that the complainant did not cooperate and did not provide this information. The defendant also specifies that information has been communicated to the complainant several times in a transparent and understandable manner regarding the access request.

7.

On September 6, 2023, the parties are informed that the Contentious Chamber is proceeding ex officio to organize a hearing, the date of which is set for November 23, 2023.

8.

On October 13, 2023, the Contentious Chamber receives a letter from the complainant indicating that not all documents in the file could be consulted electronically and that, in the absence of all the information, it was not possible to submit a reply within the deadline set for the submission of conclusions. Following this, the Contentious Chamber sends the requested documents to the complainant by mail.

9.

On October 26, 2023, the date of the hearing is postponed to December 14, 2023, with a (new) deadline for the submission of the complainant's reply conclusions set for November 8, 2023, and for the defendant's reply conclusions set for November 29, 2023.

10.

Despite the extension of deadlines for the submission of conclusions, no new conclusions are submitted to the Contentious Chamber.

11.

On December 14, 2023, the defendant is heard by the Contentious Chamber. The complainant, who was duly summoned, informs by letter received on December 13, 2023, by the Contentious Chamber that she will not appear.

12.

On December 21, 2023, the minutes of the hearing are submitted to the parties.

13.

On December 22, 2023, the Contentious Chamber receives a single remark from the defendant regarding the minutes, which it decides to include in its deliberation.

II. Reasoning

a) Quality of the defendant

14.

In order to determine the obligations that the defendant must fulfill under the GDPR, it is necessary to first establish in what capacity he is acting concerning the processing of data that is the subject of the complaint. In this context, it is crucial to examine whether the defendant

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acts as the data controller (art. 4.7) of the GDPR²) or as a processor (art. 4.8) of the GDPR³).

15.

The defendant argues that it acts solely as a processor and not as a data controller. The Contentious Chamber verifies whether the premise according to which the defendant should be considered solely

as a processor is consistent with the (broad) interpretation of the concept of data controller by the Court of Justice⁴ and the European Data Protection Board (EDPB), particularly in the Guidelines 07/2020 regarding the notion of data controller.

16.

The GDPR defines a "data controller" as an entity that, alone or jointly with others, determines the purposes and means of processing personal data⁵. This definition must be understood in light of the legislator's objective to place the primary responsibility for the protection of personal data in the hands of the entity that exercises effective control over the data processing. This implies that not only the legal qualification must be considered but also the factual reality⁶.

17.

The EDPB has clarified that the concept of data controller is based on the influence of the data controller over the data processing, based on decision-making power or control over the processing activities. Such control may arise from legal provisions, implicit competence, or be based on the exercise of factual influence⁷. Essentially, determining the purposes and means amounts to determining the why and how of the processing: for a particular processing activity, the data controller is the one who exercises this influence over the processing of personal data and thus determines the reason why the processing takes place (i.e., to

2 Article 4 of the GDPR:

"For the purposes of this Regulation, the following definitions apply:

[...]

7) 'data controller' means the natural or legal person, public authority, agency or other body which, alone or jointly with others, determines the purposes and means of the processing; where the purposes and means of such processing are determined by Union law or the law of a Member State, the data controller may be designated or the specific criteria for its designation may be provided for by Union law or the law of a Member State;"

3 Article 4 of the GDPR:

"For the purposes of this Regulation, the following definitions apply:

[...]

8) 'processor' means a natural or legal person, public authority, agency or other body which processes personal data on behalf of the data controller;"

4 See in particular CJEU, Judgment of 10 July 2018, *Jehovan todistajat*, C-25/17, ECLI:EU:C:2018:551, para. 66, and a more recent judgment of 7 March 2024, *IAB Europe*, C-604/22, ECLI:EU:C:2024:214, para. 55.

5 Article 4(7) of the GDPR.

6 L.A. BYGRAVE & L. TOSONI, "Article 4(7). Controller" in *The EU General Data Protection Regulation. A Commentary*, Oxford University Press, 2020, p. 148.

7 EDPB Guidelines 07/2020 on the concepts of data controller and processor in the GDPR, v2.0, 2021, paragraphs 20 et seq.

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what ends or why) and how this objective will be achieved (i.e., what means must be implemented to achieve the objective)⁸.

18.

The power to determine the means and purposes of processing activities can first be associated with the functional role of an organization⁹. Responsibility can also be attributed based on contractual provisions between the parties involved, although these are not always decisive¹⁰, or based on an assessment of the effective control of a party. Thus, the determination of means and purposes may arise from a decisive influence on the processing, more specifically on the reason why processing occurs according to a well-defined mode¹¹.

19.

In its ruling on the *Jehovah's Witnesses*¹², the Court of Justice provides a detailed explanation regarding the concept of data controller. This ruling emphasizes that the definition of data controller should be interpreted broadly in order to "ensure effective and complete protection of the data

subjects"¹³ and that it is not necessary to have access to the personal data being processed to be considered a data controller¹⁴.

20. The determining factors for establishing whether data processing occurs as a data controller or as a processor are the purposes and means, more precisely the extent to which there is decision-making power in this regard.

21.

In this specific case, it concerns the processing of data carried out by the defendant using software that is an appointment scheduling system based on Internet technology. In order to assess the defendant's impact on the purpose and means, it is first necessary to understand how this application works. It is presented as follows:

- a. The patient visits the medical practice's website or uses the application;
- b. The patient identifies themselves in the online scheduling system. The user of the application, in this case the healthcare provider, chooses how the patient can make an appointment.

8 Ibid., paragraph 35.

9 D. De Bot, *The application of the General Data Protection Regulation in the Belgian context*, Wolters Kluwer, 2020, paragraph 362.

10 D. De Bot, *The application of the General Data Protection Regulation in the Belgian context*, Wolters Kluwer, 2020, paragraphs 363-365.

11 Guidelines 07/2020 of the EDPB regarding the concepts of data controller and processor in the GDPR, v2.0, 2021, paragraph 20.

12 Judgment of the CJEU of July 10, 2018, *Jehovah's Witnesses*, C-25/17, ECLI:EU:C:2018:551.

13 Judgment of the CJEU of May 13, 2014, *Google Spain and Google et al.*, C-131/12, ECLI:EU:C:2014:317, paragraph 34; see also the discussion regarding the scope of the concept in C. DOCKSEY and H. HIJMANS, "The Court of Justice as a Key Player in Privacy and Data Protection", *European Data Protection Law Review*, 2019, Vol. 3, (300)304.

14 Judgment of the CJEU of July 10, 2018, *Tietosuojaalutettu and Jehovah's Witnesses – religious community*, C-25/17, ECLI:EU:C:2018:551. See also in this regard the guidelines 07/2020 of the EDPB regarding the concepts of data controller and processor in the GDPR, v2.0, 2021, paragraph 45.

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connect, namely via 1) a username and password; 2) the last name, first name, and date of birth; 3) the e-ID; 4) the national registry number or 5) a social media account;

- c. The patient chooses the doctor with whom they wish to make an appointment;
- d. The patient optionally chooses a type of appointment;
- e. The patient selects the desired time slot;
- f. The patient optionally completes additional remarks;
- g. The patient confirms their appointment.

22.

Then, the defendant checks whether the personal data in question of the concerned patient is present in the healthcare provider's database. If so, the patient can make an appointment. If not, either the patient can register manually, or access is denied if the healthcare provider does not wish to accept new patients.

23.

Based on the elements in this file, the Contentious Chamber finds that the purpose pursued is to have an online scheduling system that allows for making appointments and receiving appointment reminders, exchanging data with other applications, and making appointments in a fully automated manner by phone. This purpose is dictated by the necessity for the healthcare provider to efficiently and effectively record appointments with patients. This means that the purpose is determined entirely autonomously by the healthcare provider and that the defendant's online scheduling system is merely a means to achieve this purpose. In this context, it is clear that only healthcare providers who believe that the application proposed by the defendant, with the possibilities offered by the online scheduling system to record appointments with patients, meets their concrete needs will actually resort to the defendant and enter into a contract with them. The healthcare provider therefore decides not only on

the purpose but also autonomously on the means that they consider most appropriate to achieve the purpose they pursue. In this context, the defendant has a purely intermediary role in the sense that they only propose and offer the various functionalities of the application. However, it is exclusively the healthcare provider who chooses, based on the purpose they pursue, which functionalities they wish to use among the application options proposed by the application. Since both the purpose and the means for this purpose are determined exclusively by the healthcare provider, the latter must therefore be attributed the status of data controller.

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24.

The defendant satisfies both central conditions¹⁵ to be qualified as a subcontractor within the meaning of Article 4.8) of the GDPR, namely:

a) it is a distinct legal entity that is independent of the data controller, that is, the healthcare provider, and

b) it processes personal data on behalf of the data controller.

25.

Healthcare providers, generally a practice of healthcare providers, decide to subcontract the activity of online appointment scheduling with patients to the defendant, which is an external organization that is completely independent of the practice to which the healthcare providers belong. The defendant also possesses the required legal personality, as it has taken the form of a limited liability company.

26.

It emerges from the subcontracting agreements submitted by the defendant that the processing activity is carried out under the strict obligation for the defendant to perform it in accordance with the written instructions of the healthcare provider and solely according to those instructions. The Disciplinary Chamber finds that within this framework, there is no scope for the defendant to process the personal data obtained for any other purpose of its own. Thus, it is also explicitly stated that the defendant will not process personal data for any purpose other than that defined by the healthcare provider, and in this respect, the requirement of Article 28.10 of the GDPR to be considered a subcontractor is therefore satisfied. Indeed, any purpose of its own regarding the data obtained is completely absent on the part of the defendant, who processes this data solely on behalf of the healthcare provider. This is also emphasized in the privacy statement¹⁶ submitted by the defendant. It explicitly states that the defendant is solely responsible for the technical operation of the platform, with the healthcare providers being responsible for determining the purposes and content of the data processing.

27.

The defendant's status as a subcontractor is also confirmed by the fact that the specific processing activity of the defendant, as a service provider that processes the personal data of the patient in the context of its relationship with the healthcare provider in order

¹⁵ EDPB Guidelines 07/2020 on the concepts of controller and processor in the GDPR, v2.0, 2021, paragraphs 73 - 84.

¹⁶ Privacy Statement Y, point 3.1 under title 3. Who processes personal data:

"Regarding the Indirect Users of the Platform, the Direct User will acquire the status of data controller. The Direct User understands that in this context, Y only acts as a subcontractor ensuring the proper functioning of the Platform." [Translator's note: freely translated by the Translation Service of the Data Protection Authority, in the absence of an official translation]

In the privacy statement, under title 1 Definitions, it indicates how to interpret "Direct User" and "Indirect User," referring respectively to healthcare providers and patients. This is further confirmed in the defendant's conclusions.

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to allow the recording of an appointment between the patient and the healthcare provider, takes place on behalf of the healthcare provider who has absolute control over the processing of data. In this regard, the nature of the service is paramount in the sense that, to be qualified as a subcontractor, the service provided must be specifically focused on the processing of personal data or the processing carried out must constitute an essential aspect of this service. The software application made available

by the defendant is essentially focused on the processing of personal data of patients as provided by the healthcare provider and which are necessary to proceed with the sole recording of appointments with the relevant healthcare provider without the defendant offering in this context any management of health data files and without exerting any influence on the determination of the purposes and means of the processing.

28.

Given that the Contentious Chamber considers it established that the defendant acts as a subcontractor, this has implications for the data protection obligations that arise from it. The Contentious Chamber sets out below, in this perspective where the defendant has the status of subcontractor, the exercise of the right of access that is the subject of the complaint.

b) Right of access

29.

The right of access as set out in Article 15.1 of the GDPR¹⁷ states that the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, when it is, access to the said personal data as well as the following information:

a) the purposes of the processing;

b) the categories of personal data concerned;

c) the recipients or categories of recipients to whom the personal data have been or will be disclosed, in particular recipients who are located in third countries or international organizations;

d) where possible, the envisaged duration of the retention of the personal data or, where that is not possible, the criteria used to determine that duration;

e) the existence of the right to request from the data controller the rectification or erasure of personal data, or a restriction of processing of personal data concerning the data subject, or the right to object to such processing;

f) the right to lodge a complaint with a supervisory authority;

g) when the personal data are not collected from the data subject, any available information as to their source;

h) the existence of automated decision-making, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

2. When personal data are transferred to a third country or to an international organization, the data subject has the right to be informed of the appropriate safeguards, pursuant to Article 46, in relation to that transfer.

3. The data controller shall provide a copy of the personal data undergoing processing. The data controller may charge a reasonable fee based on the administrative costs for any further copies requested by the data subject. When the data subject makes the request by electronic means, the information shall be provided in a commonly used electronic format, unless the data subject requests otherwise.

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concerning the aforementioned personal data as well as the information included in this provision. This results in several obligations for the data controller, in accordance with Article 12 of the GDPR relating to transparent information and communication with respect to the data subject, as well as regarding the facilitation of the exercise of the right of access by the data subject.

30. The Contentious Chamber draws attention to the fact that this right held by the data subject must be exercised with respect to the data controller. Therefore, the right of access can only be exercised by the data subject, in this case the complainant, with respect to the data controller, namely the healthcare provider. No provision of the GDPR offers a basis for a data subject to exercise the right of access directly against the processor to whom the data controller has recourse. Given that the defendant is a processor, the complainant cannot reasonably address him in order to access the data concerning her.

31.

It appears from the case files, particularly those produced during the mediation procedure with the Frontline Service, that the defendant attempted several times to provide information to the complainant

by drawing her attention to the fact that the access request should be addressed to each healthcare provider in their capacity as data controllers, and by providing the complainant, within the framework of the mediation, with a list of the offices that process her personal data. Although under the GDPR there is no obligation on the part of the defendant to comply with the request for access to personal data that is processed via the software application by the healthcare providers consulted by the complainant, the defendant attempted to make it clear to the complainant that she should submit her access request separately to the relevant healthcare providers. During the hearing, the defendant reiterated that only the healthcare provider, as the data controller, could be asked to communicate data to the data subject. Specifically, in the present case, after information was obtained during the mediation procedure with the Frontline Service, the defendant sought out the complainant. This search aimed to indicate to which data controllers the complainant should address her access request in order to enable her to obtain a response to her access request.

32.

Within the scope of the possibilities available to him as a processor, being required to process personal data only according to the written instructions of the data controller, namely the healthcare provider, the defendant is not authorized to independently provide access to the personal data of the complainant processed by the healthcare provider. However, the defendant was accommodating by informing the complainant that based on a search, she had been found in the database of six healthcare providers and by providing her with a list of those providers.

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This allowed the complainant to individually contact these healthcare providers in order to exercise her right of access, specifying that the defendant could at best assist the relevant healthcare providers in formulating a response to the access request that the complainant addresses to them if necessary. Furthermore, the Contentious Chamber emphasizes that this is a good practice that facilitates the exercise of the rights of the data subject.

33. The Contentious Chamber concludes based on all these elements that the defendant has not committed any violation of Article 4.7) of the GDPR in conjunction with Article 12.3 and Article 12.4 of the GDPR as well as Article 15.1 of the GDPR.

III. Publication of the decision

34. Given the importance of transparency regarding the decision-making process of the Contentious Chamber, this decision is published on the website of the Data Protection Authority. However, it is not necessary for this purpose that the identification data of the parties be directly communicated.